

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 2102714

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: LORETO ALTAMIRANO

and

RESPONDENT: MAXIMILLIANO SALVO

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – VISITATION

RULING

Procedural History

This matter is before the Court on Petitioner/Mother's June 1, 2026, Request for Order (RFO) for a modification to visitation and orders (1) defining Winter Break, (2) establishing a summer schedule, and (3) clarification of travel to Chile, relating to the parties' son, Franco (DOB: 11/23/2017). Per a stipulation and agreement that the parties entered into that was filed on April 2, 2025, the parties have joint legal and joint physical custody of Franco on a 2/2/5 schedule.

Mother requests that the Court define the duration of the Winter Break as the full two weeks, divided in half, with the parents alternating who has the first and second weeks. Mother seeks a week on/off summer parenting schedule, with up to 18 consecutive days for travel as noticed prior to March 15 each year, and seeks affirmation of their May 27, 2022, Judgment and their September 11, 2024, Mediated Custody Agreement, both of which state travel to Chile may occur during the Summer Break.

In his June 25, 2026, Responsive Declaration, Father requests out-of-state or international travel be allowed during either parent's custodial time, with 30 days written notice for international travel, including dates, destination, flight information, and contact information during the trip.

Father further seeks an order that he hold Franco's passport, with release to Mother for confirmed international travel plans 20 days prior to her departure along with a Notarized Travel Authorization. Father proposes the parties alternate the entire Winter break, with international travel permitted during that period. Father agrees to a week on/off summer schedule but requests up to 30 days vacation for each parent, including international travel, with proposed vacation date due by April 15.

Finally, Father identifies a series of specific requests. First, Father requests permission to travel to Chile over the 2026 Thanksgiving break. Second, Father seeks \$412 in reimbursement from

Mother for lost travel expenses from December 2025. Third, Father seeks \$4,250 in attorney fees incurred, caused by Mother's refusal to sign Consent to Travel forms.

Both parties were interviewed together by Family Court Services (FCS), and FCS issued its report with the Court on July 6, 2026. The parties reached several agreements which are memorialized in the Report together with a set of recommendations as to disputed issues.

On July 9, 2026, Father submitted a statement of agreement/disagreement agreeing with the recommendations, which extends each party's summer vacation time to 21 days. Father requests that the Court order that Father hold Franco's passport and that he be reimbursed \$412.67 in lost travel expenses for a missed Christmas trip in 2025.

On July 10, 2026, Mother filed a statement of agreement/disagreement. Mother disagrees with the FCS recommendations, specifically recommendations # 1, 2, 3 and 6. Mother points out that the parties' prior orders were for 18 days, and Mother argues that Father's request to extend the length of the summer vacation is beyond the scope of her requests, which were simply for clarification. Mother requests that a deadline be established for the second parent to select their summer vacation dates, one week after the first parents has made their selection.

Parenting plan and conditions

The Court has reviewed the submissions of the parties together with the custody report and recommendations prepared by FCS. Based on the information before the court, the Court finds good cause and that it is in the best interest of the minor child, Franco (DOB: 11/23/2017), to adopt the agreements and recommendations from FCS, as set forth in its report issued on July 9, 2026, as modified by the Court, as follows:

Agreements

1. Winter Break: shall be divided in half. Day 1 of the Winter Break is defined as the first full day after school lets out in December and the last day of Winter Break is defined as the last full day before school resumes in January. The transition day shall be on the day that is midpoint between the first and last day of Winter Break. Unless otherwise agreed to between the parents, exchanges shall occur at noon. In even-numbered years, Mother shall have the first half of the Winter Break (the week in which Christmas lands) while Father has the second half (the week in which New Year's lands). In odd numbered years, Father shall have the first half of the Winter Break while Mother has the second half.
2. Summers: Parents shall each have a set vacation block with Franco each summer. The length of this vacation block shall be determined by the Court. All other remaining weeks in the summer that are not vacation blocks shall be alternated between the parents (week on/week off schedule). Parents shall pick their vacation block by April 1 of each year. Mother shall have first choice of vacation dates in odd years while Father shall have first choice in even years.

3. For international travel, the traveling parent shall provide at least 30 days advance written notice of the intent to travel internationally (or the first possible date if travel is under exigent circumstances) to the nontraveling parent. The notice shall include a written itinerary and the Travel Authorization Form. The itinerary shall include the dates of travel, the destination(s), flight information, and a contact number where Franco can be reached while traveling. The nontraveling parent shall deliver the notarized Travel Authorization Form to the traveling parent no less than 20 days in advance of travel or no later than 72 hours prior to departure for exigent travel.

4. Exchanges: All exchanges of Franco shall occur at school whenever possible. For any face-to-face exchanges required when school is not in session, exchanges shall be peaceful and cordial. Both parents shall remain in their vehicles during the exchange which shall occur in front of the San Anselmo Public Library.

Parenting Plan

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Commencing Summer 2027, each parent may have up to 21 days of vacation time with Franco each summer. Parents may agree on a longer vacation block to accommodate international travel at any time per mutual parental agreement. As agreed upon in mediation, parents shall pick their vacation dates by April 1 of each year with Mother having first choice in odd years and Father having first choice in even years. The remaining weeks of the summer that are not designated as vacation weeks shall be on an alternating week schedule.

2. Commencing Summer 2028, each parent may have up to 28 days of vacation time with Franco each summer.

3. Franco may travel with Father to Chile for the 2026 Thanksgiving Break from November 19, 2026, through November 29, 2026. Mother shall cooperate with providing the notarized Travel Authorization Form by August 1, 2026.

4. For future international travel, the notarized Travel Authorization Form shall be delivered to the traveling parent by the nontraveling parent no less than 20 days in advance of travel or no later than 72 hours prior to departure for exigent travel.

5. Neither parent shall unreasonably withhold consent to travel with Franco, particularly travel to Chile to visit family.

6. There shall be no prohibition on international travel for either parent to travel with Franco over school breaks including Spring Break, Midwinter Break (February break), Thanksgiving, Christmas, and Summer Break.

7. When parents have family visiting from Chile, there shall be no expectation that Franco shall be made available to the noncustodial parent unless otherwise agreed to between the parents. Parents are encouraged to exercise flexibility in the custody schedule when they have family visiting from Chile so that Franco can spend quality time with his extended family on both sides.

8. Parents may modify any portion of their parenting plan including the weekly timeshare, the timeshare during school breaks, summer vacation time, etc. at any time per mutual parental agreement.

Attorney's Fees

Although Father could not gain Mother's cooperation regarding travel, the parties have numerous prior agreements and Mother's decision to seek clarification and additional orders was reasonable. Father's request for fees as a sanction for Mother's refusal to agree to international travel on Father's terms is denied.

Father's attorney to prepare the Findings and Orders After Hearings.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0000794

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: KYLE BALOUGH

and

RESPONDENT: ANNA NEMETULAYEVA

NATURE OF PROCEEDINGS: REQUEST FOR ORDER– CHILD CUSTODY/VISITATION

RULING

This matter is before the Court on Respondent/Mother's April 30, 2026, Request for Order (RFO) for a modification to for custody and visitation requesting more time with the parties' daughter, London (DOB: 02/18/2023). Petitioner /Father filed a Responsive Declaration on June 26, 2026.

On December 08, 2025, a Domestic Violence Restraining Order (DVRO) was issued in case FL000841 with Mother as the restrained party. The order will expire on July 22, 2027. The DVRO granted Father sole legal custody of London, and the parties share joint physical custody of the child. Mother only has joint legal custody as to health and medical decisions regarding the child. The visitation schedule outlined in the Findings and Order After Hearing on September 13, 2024, would remain in effect. On December 11, 2025, a DVRO was issued with Father as the restrained party. The order will expire on July 22, 2027, and had the same orders.

Mother requests joint legal and physical custody, a week on/week off parenting time schedule with exchanges every Sunday at 4:00 PM in Vallejo Police Station as well as a holiday schedule. Mother also requests child abduction prevention orders because Father moved to Sacramento.

Father requests that Mother's requests be denied, but he does agree that there are some aspects of the orders need to be clarified, one of which Mother's involvement in legal decisions as he states Mother continues to attempt to obstruct routine medical care.

Matter to be continued with referral to Marin Family Court Services

Mother's RFO is continued for 6 weeks to August 26, 2026, and the parties are re-referred to Family Court Services (FCS) as FCS interviews were not completed.

The Court will prepare the Findings and Order After Hearing.